

Court No. - 21

Case :- WRIT - C No. - 4722 of 2023

Petitioner :- Omprakash

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Ajay Kumar Dwivedi, Yogesh Kumar Srivastava

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Syed Qamar Hasan Rizvi, J.

The petitioner has challenged the demand notice dated 11.11.2020 demanding a sum of Rs.1,36,294/- from the petitioner towards electricity charges in a case of theft of electricity.

Sri Baleshwar Chaturvedi, learned counsel for the Electricity Department states that the impugned demand notice has been withdrawn and that the respondent Electricity Department will pass a fresh order after affording opportunity of hearing to the petitioner.

Accordingly, the instant petition is disposed of with liberty to the respondents to pass a fresh order strictly in accordance with the procedure prescribed in the Electricity Supply Code, 2005.

(Syed Qamar Hasan Rizvi, J.) (Manoj Kumar Gupta, J.)

Order Date :- 9.2.2023

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